

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE
Judicial Department

C.R.No.30839/2021

Haji Bashir Ahmad Ch. **Versus** Bashir Ahmad Deceased
through L.Rs. Etc.

JUDGMENT

Date of hearing:	17.05.2021
Appellants by:	In person.
Respondents By:	----

ABID HUSSAIN CHATTHA, J: The brief facts leading to this Revision Petition are that the Petitioner instituted a suit for specific performance and mandatory injunction on 21.02.2002 seeking proprietary rights of Quarter No. 181, Block 15, Sector B-1, Township, Lahore (the “**Quarter No. 181**”), which was initially allotted to present Respondent No. 2 by Housing & Physical Planning Department (the “**Department**”). The Petitioner claimed that he was allotted Quarter No. 154, Block No. 15, Sector B-1, Township, Lahore (the “**Quarter No. 154**”) by the Department. He, later on, exchanged it with the Quarter No. 181 on 11.01.1974. Hence, he is entitled to the ownership of the Quarter No. 181. The suit of the Petitioner was dismissed by the learned Civil Judge, Lahore on 30.09.2008. The Petitioner preferred an Appeal, which was accepted vide Judgment & Decree dated 11.06.2013 by the learned Additional District Judge, Lahore subject to all just and legal exceptions. In the last paragraph of the said Judgment, the learned Appellate Court importantly observed as under:-

“.....However, it is further observed that if any other claimant of the suit property does not arise rather any counter title is not submitted before the competent forum to challenge the claim of the Appellant, then the Appellant be considered having proprietary rights over the alleged property. However,

if any counter claimant surfaces with a valid proof of ownership, the Appellant will establish his proprietary right and title vis-à-vis the said document independently and present observations will have no effect, at all. Similarly, if the present order is produced before any forum/competent authority, the aggrieved may approach the concern competent quarter to redress his/their grievances, if so advised.....”

2. On 14.03.2016, one Bashir Ahmad son of Muhammad Shafi (the “**Applicant**”) filed an application under Section 12(2), of the Code of Civil Procedure, 1908 (Act V of 1908) (the “**CPC**”) against the said Judgment and Decree dated 11.06.2013, alleging therein, that the Petitioner was owner in possession of the Quarter No. 154 through registered sale deed No. 5593 dated 09.07.1999 and he sold the Quarter No. 154 to the Applicant through another registered sale deed No. 16320 dated 29.10.2003. The Petitioner with *mala fide* intention did not implead the Applicant in the suit filed by him and concealed the fact that he had sold the Quarter No. 154 to the Applicant who came to know about the impugned Judgment and Decree when Respondent No. 3 (the “**LDA**”) called him to its office in February, 2016. Hence, the Judgment and Decree dated 11.06.2013 is a result of fraud, misrepresentation and concealment of facts by the present Petitioner. The LDA in its reply also supported the version of the Applicant.

3. The learned Additional District Judge, Lahore after framing issues and recording evidence, allowed the application on 14.11.2020 (the “**Impugned Order**”) in the following terms:-

“Relief:

16. As result of above findings, application u/s 12(2) CPC is accepted, Judgment and Decree dated 11.06.2013 passed in the subject Appeal are set aside. Resultantly, the subject appeal shall stand restored....”

4. Feeling aggrieved from the Impugned Order, the Petitioner instituted the instant Civil Revision, which, being time barred by more than

50 days, was accompanied with C. M. No. 2/2021 for condonation of delay, under Section 5 of the Limitation Act, 1908.

5. As far as limitation is concerned, time period of 90 days for filing Revision Petition was inserted in Section 115 of the CPC through the Civil Procedure Code (Amendment) Act 1992, through the following provision:-

“Provided that such application shall be made within ninety days of the decision of the Subordinate Court which shall provide a copy of such decision within three days, thereof, and the High Court shall dispose of such application within three months.”

The *lis* in the titled Revision Petition commenced on 21.02.2002 and even the date of filing of the Application under Section 12(2) of the CPC is 14.03.2016. Therefore, the question of limitation in the titled Revision Petition shall be governed and applied through the above proviso contained in Section 115 of the CPC since revision under Section 115 of the CPC has been held to be a substantive right in case titled, Muhammad Saif Ullah v. Lahore Development Authorities and others, **PLD 2021 Lahore 168** by following cases, Manzoor Ali and 39 others v. United Bank Limited through President, **2005 SCMR 1785**; Idrees Ahmad and others v. Hafiz Fida Ahmad Khan and 4 others, **PLD 1985 Supreme Court 376**; Pakistan International Airlines Corporation v. Messrs Pak Saaf Dry Cleaners, **PLD 1981 Supreme Court 553**; and Mst. Zebunnisa and others v. Sind Road Transport Corporation and another, **1982 CLC 1228**.

6. This is notwithstanding that on 14th March 2018 through simultaneous amendments, the time period of 90 days for filing revision under Section 115 of the CPC has been prescribed in Article 162-A of First Schedule of the Limitation Act, 1908 through the Limitation (Punjab Amendment) Act, 2018 (Act VII of 2018) and the proviso with respect to limitation has been omitted from Section 115 of the CPC through the Code of Civil Procedure (Punjab Amendment) Act, 2018 (Act XIV of 2018) dated 20.03.2018, which reads as follows:-

“Provided further that the subordinate court shall provide copies of the documents to a person within three days of the decision, and the High Court shall dispose of such application within six months.”

Therefore, it follows that *lis* commencing after 20.03.2018, the period of limitation of 90 days for filing of revision under Section 115 of the CPC, shall be reckoned and governed under Article 162-A of First Schedule of the Limitation Act, 1908.

7. In instant case, question of condoning delay is of prime importance. The Hon’ble Supreme Court of Pakistan has extensively dealt with the issue of limitation in case titled, Lahore Development Authority Versus Mst Sharifa Bibi and another, **PLD 2010 Supreme Court 705** and observed that the law of limitation is a rule of procedure, a branch of adjective law. It controls and regulates the process of litigation and time lines to prosecute a cause, failing which the matter must be closed. The litigant must take legal recourse with due diligence, as the laws assist those who are vigilant and not those who sleep over their rights. Consequently, conclusion was drawn that law of limitation cannot be considered a mere formality, rather, required to be dealt with being mandatory in nature with the specific purpose to help the vigilant and not the indolent. It was further held that if the statute governing the proceedings does not prescribe the period of limitation, the proceedings are governed by the Limitation Act as a whole but where proceedings have been prescribed in the statute itself, such as in Section 115 of the CPC, the benefit of Section 5 of the Limitation Act is not available unless it has been made applicable as per Section 29(2) of the Limitation Act. But notwithstanding the same, discretion to condone delay is wide enough in a Court depending upon a variety of factors, particularly, sufficient cause shown by a party to the satisfaction of the Court. This is particularly so since the revisional jurisdiction is always discretionary and equitable in nature.

8. By applying the settled law discussed above on the facts of the titled case, it follows that the titled Revision Petition is barred by time. Even otherwise, the Petitioner has cited medical treatment as sole ground

for delay in filling the instant Civil Revision, and that too without attaching any supporting document to substantiate his claim. In case titled, Karam Din Versus Province of Punjab, **2004 SCMR 1358**, the Honorable Supreme Court observed that no medical certificate was appended with application for condonation of delay and held that in absence of medical certificate, plea of being indisposed cannot be entertained. In another case titled, Sahibzadi Ghazala Ismat Hassan Khan Sabri versus Vice-Chancellor, University of The Punjab, **1997 SCMR 2487**, where delay was sought to be condoned on the ground of serious injuries caused in an accident, the application for condonation of delay was dismissed on the ground that no documentary evidence has been placed on record in support of the grounds urged for condonation of the delay.

9. Even otherwise, the Honorable Supreme Court refused to condone delay where medical certificates were appended. In case titled, Mian Muhammad Amjad Amin versus Rana Bashir Ahmad, **2004 SCMR 836**, the August Supreme Court observed that:-

“3.... The medical certificate appended for the first time also does not support his case. It is totally vague in nature and does not establish his case as taken up by him at the time of making the application to appear and defend. In the said application, as already stated, he mentioned his inability in moving from bed due to illness from 8-3-2002 till 9-4-2002. However, in the certificate he had been advised rest from 9-3-2002 till 22-4-2002. All the above-stated resume demonstrates that the petitioner has failed to explain his belated approach.”

Similarly in case titled, Muhammad Ramzan versus Zulfiqar Ahmad, **2003 SCMR 785**, the petition was barred by just nine days and Petitioner attached medical certificate but Honorable Supreme Court observed that:-

“Perusal of the certificate does not indicate that the petitioner was suffering from such disease on account of which he was not in a position to contact his counsel. Moreover, it has not been explained that besides the petitioner, there was no other male member in his family to contact his counsel.”

So the application for condonation of delay was dismissed. Similarly, in case titled, Mian Abdul Rahim Sethi Versus Federation of Pakistan, **2000 SCMR 1197**, the Honorable Supreme Court, while dealing with application for condonation of delay on medical ground held that:-

“Even the medical certificate, which is relied by the learned counsel for the appellants/petitioners, does not advance the case of the appellants/petitioners any further as admittedly the appellant Muhammad Amin Sethi was operated on 22.05.1993 and it has not been disclosed as to what happened between the period from 23-5-1993 till the date of filing of appeals/petitions before this Court. After hearing the learned counsel for the appellants/petitioners, we are satisfied that no ground for condonation of delay is made out.”

Thus, keeping in view the above case law, I am of considered view that medical ground is not overwhelming ground to condone delay unless each and every day of delay is sufficiently explained to the satisfaction of Court. In the instant case, neither any medical documents are attached nor each and every day is plausibly explained on any other ground. Therefore the Civil Revision is held to be hopelessly time barred.

10. The next question is to examine conditions from the facts and circumstances of the case that may warrant the exercise of *suo motu* jurisdiction conferred upon this Court under Section 115, CPC to circumvent the issue of limitation. In case titled, Hafeez Ahmad and others v. Civil Judge, Lahore and others, **PLD 2012 Supreme Court 400** with reference to issue of *suo motu* jurisdiction conferred under Section 115 of the CPC, it was observed that the jurisdiction could be exercised by the High Court or the District Court in a case where a Revision Petition has been filed after the prescribed period of limitation depending on the discretion of the Court because exercise of revisional jurisdiction in any form is discretionary. *Suo motu* jurisdiction can be exercised, if the conditions for its exercise are satisfied. Revisional jurisdiction is preeminently and in essence, corrective and supervisory, therefore, there is absolutely no harm if the Court seized of a Revision Petition, exercises its

suo motu jurisdiction to correct the errors of jurisdiction committed by a subordinate Court.

11. The perusal of the record of the titled case leads to an irresistible conclusion that the Impugned Order has been lawfully passed keeping in view, the facts and circumstances of the case. The learned Additional District Judge, Lahore has restored the appeal while allowing the application under Section 12(2) of the CPC. Such practice is in accordance with law and discussed in case titled, Haji Farman Ullah Versus Latif-Ur-Rehman, **2015 SCMR 1708**, wherein the Honourable Supreme Court held that:-

“5. If after the contest of the application under section 12(2), C.P.C., the court comes to the conclusion that the decree did suffer from vice as is stipulated by the section, it shall accept the same and as a general and ordinary rule and matter of course, the suit of the plaintiff shall stand revived and thereby give a chance to the defendant (the applicant under section 12(2)) to file his written statement, for the purposes of setting up his defence in the main suit. Thereafter, the case shall be tried and decided on its own merits per the law prescribed for a suit (after the revival thereof).

Similar views are held in cases Mst. Shahana Ali Versus Syed Muhammad Haris Jaffari and others, **PLD 2010 Karachi 366**; Aurangzeb Versus Massan and 13 others, **1993 CLC 1020** and Muhammad Umar and others Versus Hamid Hamza and 4 others, **2017 CLC 699**.

12. In the instant case, the claim of exchange of the Quarter No. 154 with the Quarter No. 181 by the Petitioner is in conflict with the claim of sale of the Quarter No. 154 by the Petitioner to the Applicant. Without resolving the same, the entitlement of the Petitioner to the Quarter No. 181 in exchange of the Quarter No. 154 cannot be determined. The Impugned Order was passed after framing of issues and recording of evidence. Hence, by accepting the application under Section 12(2), CPC, the learned District Court has provided full opportunity to all the contesting parties to conclusively and finally determine the ownership of the Quarter No. 154

and the Petitioner's entitlement regarding the Quarter No. 181. This course will minimize the multiplicity of proceedings and resolve the issue conclusively. Even otherwise, the Petitioner is not prejudiced, in any manner, from the passing of the Impugned Order, since the Appeal is deemed pending before the District Court and will be decided on its own merits.

13. Hence, this is not a fit case where this Court could have exercised *suo motu* powers under Section 115 of the CPC to condone the period of limitation. This conclusion is in line with the 'Doctrine of *Limine* Control' eloquently expounded in the reported case titled, Asif Saleem v. Chairman Bog University of Lahore and others, **PLD 2019 Lahore 407**.

14. Keeping in view the above discussion, it is concluded that the titled Revision Petition is hopelessly time barred. There is no material irregularity or illegality in the Impugned Order which is well reasoned and based on sound legal premises and does not warrant exercise of *suo motu* jurisdiction conferred upon this Court. Hence, the same is **dismissed** in *limine*. However, it is clarified that any observation made herein shall not prejudice the cause of any contesting party and the pending Appeal shall be decided on its own merits in accordance with law.

(ABID HUSSAIN CHATTHA)
Judge

Waqar

Approved for reporting.